

the hypothetical “13th juror,” this Court concludes that the jury’s findings are supported by credible and competent evidence. In weighing any evidence that was presented to the jury independently, and reviewing the trial record, the Court finds that there was sufficient evidence to support Plaintiff’s verdict against the Defendant in this case. Accordingly, the Court finds that reasonable inferences drawn from the evidence establish that there was no insufficiency of the evidence which leads this Court to conclude that the jury should have come to a different decision.

After reviewing the evidence in light of the foregoing statutory and decisional authority, the Court finds good cause to deny Defendant’s Motion for New Trial

Ruling

Defendant Natalia Howard’s Motion for New Trial is **denied**. Plaintiff is ordered to prepare and e-file a proposed order attaching a copy of the tentative ruling no later than five (5) days from the date of the hearing.

13. 9:00 AM CASE NUMBER: C24-02919
CASE NAME: NICOLE LITTLE VS. JOHN MUIR HEALTH
HEARING ON SUMMARY MOTION CONTD FROM 3/11/26 PER TR
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for summary judgment filed by John Muir Health (“defendant” or John Muir”). The motion is **granted**, as discussed below. John Muir shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On December 25, 2023, plaintiff was injured when she tripped. Plaintiff’s shift at John Muir had ended and she was walking to her car. Plaintiff was employed as a travel nurse at John Muir’s facility through a contract between John Muir and nurse staffing agency, Cross County Healthcare (“Cross Country”).

Plaintiff’s complaint alleges two causes of action against John Muir, negligence and premises liability, based on an injury she suffered when she tripped while walking to her car after her shift ended. Plaintiff was employed as a travel nurse at John Muir’s facility through a contract between John Muir and nurse staffing agency, Cross County Healthcare (“Cross Country”). (SSUMF, Fact. Nos. 1-2, and plaintiff’s response.)

The contract between John Muir and Cross Country, pursuant to which plaintiff was working, provided that John Muir would retain “administrative and professional responsibility” for services rendered to patients, and further, that John Muir would be responsible for management and control functions related to the provision of service to patients. (SSUMF, Fact. No. 3, and plaintiff’s response.) Plaintiff argues this language is not determinative because John Muir “did not control plaintiff’s functions or duties,” citing facts that suggest plaintiff had a significant amount of experience and autonomy in delivering care. (See Additional Material Fact Nos. 1-7, 16-18.) Plaintiff points out that the contract between John Muir and Cross Country explicitly excluded any employment relationship between John Muir and the professionals working on behalf of Cross Country. (Additional Material

Fact No. 19.)

Parties dispute whether the parties knew how long plaintiff would be employed when she first began working at John Muir, or whether her term was for an indefinite period. (SSUMF, Fact. No. 4, and plaintiff's response.) John Muir asserts that it retained the authority to terminate plaintiff's assignment with or without cause. (SSUMF, Fact. No. 5.) While plaintiff purports to dispute this fact, her additional facts do not demonstrate otherwise. (Additional Material Fact Nos. 25-28.) John Muir was responsible for setting plaintiff's work schedule while she worked at its Walnut Creek facility. (SSUMF, Fact. No. 6, and plaintiff's response.)

During plaintiff's tenure at John Muir, John Muir contends that it retained, and exercised in fact, the exclusive right to supervise, manage and control plaintiff's day-to-day work activities and job duties. (SSUMF, Fact. No. 7.) Plaintiff purports to dispute this fact by presenting her own testimony that she did not consent to any special employment relationship with John Muir, by emphasizing her own qualifications and skill, and citing the contract provisions disclaiming an employment relationship. (See Additional Material Fact Nos. 1-6, 16-19.)

To the extent that Plaintiff used medical devices and equipment while working at the Walnut Creek Medical Center, those medical devices and equipment were supplied exclusively by JMH. (SSUMF, Fact. No. 8, and plaintiff's response.)

As required by its contract with John Muir, Cross Country maintained workers' compensation coverage. A workers' compensation claim was, in fact, filed on behalf of plaintiff with respect to her injuries at issue here. (See SSUMF, Fact. Nos. 9-10, and plaintiff's response.) Further, in the workers' compensation proceeding, plaintiff stipulated that her injury occurred within the course and scope of her employment. (SSUMF, Fact. No. 11, and plaintiff's response.)

II. Motion and Opposition

John Muir moves for summary judgment on the grounds that plaintiff's claims are barred by the workers' compensation exclusivity rule of Labor Code section 3600 and the "borrowed servant/dual employee" doctrine. John Muir argues it was plaintiff's "special employer" because plaintiff was a general employee of Cross Country, which provided her with workers' compensation benefits pursuant to the contract with John Muir. John Muir employee, Denise Johnson, attaches the contract between John Muir and Cross Country. The motion is also supported by a separate statement asserting eleven facts it maintains are undisputed.

Plaintiff opposes the motion, arguing that there was no employment relationship herself and between John Muir. Plaintiff cites her level of experience and the terms of the agreement between Cross Country and John Muir. She also argues John Muir did not have the right to terminate her employment relationship with Cross Country. In support of her opposition, plaintiff submits her own declaration and a declaration by counsel which attaches excerpts from the deposition of the "enterprise chief nurse executive" for Cross Country Healthcare, Henry Earl Drummond.

SSUMF, Fact Nos. 3, 5, and 7 are identified as "disputed" with citations to plaintiff's own additional facts. This is not in compliance with the summary judgment statute or California Rules of Court, which require citations to evidence. (Code Civ. Proc., § 437c (b)(3); Cal. Rules of Court, Rule 3.1350 (f)(2).) This approach obfuscates whether there is actually a dispute of fact (contrary to the policy behind the separate statement requirement) and plaintiff's counsel is cautioned to follow these rules in the future. Having reviewed the additional facts and evidence, the Court finds these facts (3, 5, and 7) are not genuinely disputed. Despite a purported dispute with respect to Fact No. 4 (whether

parties contemplated a specific end date with respect to plaintiff's tenure at John Muir), the Court does not view the dispute as material to the outcome here.

In its reply, John Muir denies that plaintiff has shown any facts that amount to a triable dispute. It further refutes one of plaintiff's key authorities (*InfiNet Marketing Services, Inc. v. American Motorist Ins. Co.* (2007) 150 Cal.App.4th 168) and argues the contractual terms between itself and Cross Country are not dispositive as to John Muir's employment relationship with plaintiff.

III. Evidentiary Matters

In support of its motion, defendant requests judicial notice of documents from plaintiff's ongoing case with the Workers' Compensation Appeals Board (Case No. ADJ18766243). Plaintiff does not oppose the request, which is **granted**.

IV. Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c (c).) A defendant's burden consists of showing one or more elements of plaintiff's cause of action cannot be established, or that there is a complete defense to a cause of action. (Code Civ. Proc. §437c, subd. (o),(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense. (*Ibid.*)

The Court's obligation on a motion for summary judgment is to "consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c(c).)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party's evidence and liberally construe the opposing party's evidence (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass'n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

V. Discussion

A. Step 1: Issues as Framed by the Pleadings

Here, plaintiff's complaint seeks to recover against John Muir for negligence and premises liability. John Muir's answer denies all material allegations and sets forth, as the Twenty-Fifth Affirmative Defense, the California's Workers' Compensation Act. The defense explicitly states that "plaintiff and defendant were in a relationship such that plaintiff was subject to the exclusive remedy of workers' compensation, barring this civil action." The issue before the Court is properly framed by the pleadings here.

B. Step 2: Initial Burden

Labor Code sections 3600, 3601, and 3602 collectively generally provide that an employee's exclusive remedy for an injury that occurs in the course and scope of the employment is workers compensation benefits ("exclusivity rule") and that the exclusivity rule applies in "dual" employment circumstances, where the employee is considered an employee of more than one employer. California case law also supports the application of the exclusivity rule in dual employment situations, where the employee is a "general" employee of the lending employer and a "special" employee of the borrowing employer. (See, e.g., *Kowalski v. Shell Oil Co.* (1979) 23 Cal.3d 168, 174; *Marsh v. Tilley Steel Co.*, *supra*, 26 Cal.3d at 492; see also *Santa Cruz Poultry v. Superior Court* (1987) 194 Cal.App.3d 575, 578.)

Labor Code, § 3602 (d)(1) explicitly states that, for purposes of workers' compensation, an employer that is borrowing employees from another employer pursuant to contract is considered to have obtained workers' compensation coverage so long as the lending employer is required to obtain coverage by the contract, and does in fact obtain the coverage for those employees. In such cases, the employer who has complied "shall not be subject to [...] tort liability in the event of employee injury [...]." (Labor Code, § 3602 (d)(2).)

Said another way, plaintiff only has a right to tort damages from John Muir if she is *not* an "employee" of John Muir. (*Caso v. Nimrod Productions, Inc.* (2008) 163 Cal.App.4th 881, 888 [citing Lab. Code § 3852 and *Marsh v. Tilley Steel Co.* (1980) 26 Cal.3d 486, 495].)

John Muir, in its motion, takes the position that plaintiff was its employee. The legal standard cited and discussed in John Muir's initial papers was established by case law, not by statute. In 2020, prior to plaintiff's stint at John Muir, Labor Code section 2775 took effect. (See *Parada v. East Coast Transport Inc.* (2021) 62 Cal.App.5th 692, 699, fn. 2].)

Labor Code, section 2775, subdivision (b)(1), describes the test for whether plaintiff was an employee of John Muir:

For purposes of this code [...] a person providing labor or services for remuneration shall be considered an employee rather than an independent contractor unless the hiring entity demonstrates that all of the following conditions are satisfied:

(A) The person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact.

(B) The person performs work that is outside the usual course of the hiring entity's business.

(C) The person is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed.

(Lab. Code, § 2775 (b)(1).)

The above test does not rely on intentions or contractual labels but instead focuses on specific criteria to classify a worker as an independent contractor. Section 2775, while awkwardly worded for a case such as this one, does not exempt workers' compensation claims. Section 2775 overrides any judicially created standard, especially from cases prior to enactment of the statute. The

standard applies to the entire Labor Code, including those sections related to the workers' compensation exclusivity rule and dual employment situations.

Because this statute was not discussed by the parties in the moving or opposition papers, the Court solicited further briefing from the parties.

In its supplemental brief, John Muir argues it was plaintiff's employer pursuant to this statutory standard as well as the *Borello* standard originally argued. In support, the evidence shows John Muir entered into a contract with Cross Country for the provision of travel nurses. The contract required Cross Country to provide worker's compensation, which Cross Country did. (See SSUMF, Fact Nos. 9-11.) While the terms of a contract for the employment are not conclusive (see *Caso, supra*, 163 Cal.App.4th at 899 [citing *Kowalski, supra*, 23 Cal.3d at 176]), John Muir establishes here that it retained responsibility for patient services, to terminate plaintiff, set plaintiff's schedule, and supervise, manage and control her day-to-day work activities. (See SSUMF, Fact. Nos. 3, 5-7.) John Muir further establishes that it supplied the medical devices and equipment plaintiff used while working at its medical facility. (SSUMF, Fact. No. 8, and plaintiff's response.)

Plaintiff, in her supplemental brief, asserts that the California Legislature "explicitly instructs" that non-wage order related claims are governed by the multifactor test set forth in *Borello & Sons*. Plaintiff points out that the statute does allow for situations in which a "court of law rules that the three-part test in [§2775, (b)(1)] cannot be applied." (Lab. Code, § 2775 (b)(3), emphasis added.)

Here, the Court has not ruled that the test cannot be applied. On the contrary, the Court itself sought an explanation of how the test affects John Muir's right to summary judgment.

In the most compelling case cited by plaintiff, *Garcia v. Border Transportation Group, LLC* (2018) 28 Cal.App.5th 558, the appellate court reflected on the uncertain state of the law at that time, disclaiming any "opinion on the appropriate test on different records in other situations." (*Id.* at 571.)

More importantly, the *Garcia* decision pre-dates the 2019 passage of section 2775. So, while that court did conclude that *Borello* furnished the proper standard as to non-wage-order claims and noted *Borello* "appear[ed] to remain the standard for worker's compensation," (*Garcia, supra*, 28 Cal.App.5th at 571), the California Legislature then came to a different conclusion in adopting the ABC test for the *entire* Labor Code, with no exception related to worker's compensation exclusivity or borrowed employees. The Legislature is presumed to be aware of all existing authority related to the issue (see, e.g., *In re W.B.* (2012) 55 Cal.4th 30, 57 ["Legislature is presumed to know about existing case law when it enacts or amends a statute"]), so its failure to create such a statutory exception is significant.

Plaintiff dedicates much discussion to the assertion that public policy prevents application of the statutory standard here, but the Court notes there are also important policies furthered by the application of the dual employer and workers compensation exclusivity rules. These rules motivate procurement of workers compensation coverage and explicit agreements and accountability with respect to who is responsible for obtaining coverage.

John Muir sufficiently shifts the burden here pursuant to the Labor Code's definition of an employee. Accordingly, the Court looks to whether plaintiff has established triable issues of material fact.

C. Step 3: Disputes of Material Fact

A material fact is one that would affect the resolution of the claim raised in the summary

judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Plaintiff argues John Muir “did not control plaintiff’s functions or duties,” citing facts that suggest plaintiff had a significant amount of experience and autonomy in delivering care. (See Additional Material Fact Nos. 1-7, 16-18.) Plaintiff also points out that the contract between John Muir and Cross Country explicitly denies an employment relationship between John Muir and the professionals working on behalf of Cross Country. (Additional Material Fact No. 19.)

Typically, where an employer obtains workers from a labor service like Cross Country, the result is to find the existence of a special employment relationship. (See *Santa Cruz Poultry, supra*, 194 Cal.App.3d at 578-579.) The result is no different here in light of the standard set by Labor Code section 2775. Plaintiff’s disputes are insufficient to create a triable issue.

VI. Conclusion

Because John Muir sufficiently shifts the burden of production to plaintiff, and because plaintiff fails to present evidence of material factual disputes, the motion must be granted.

14. 9:00 AM CASE NUMBER: C25-01096
CASE NAME: STEVEN MEDAK VS. SIGURA CONSTRUCTION INC
***HEARING ON MOTION IN RE: TRIAL SETTING PREFERENCE**
FILED BY: MEDAK, STEVEN
TENTATIVE RULING:

The motion of Plaintiffs Steven Medak and Joyce Philbin for trial preference is **denied without prejudice**.

Background

On April 18, 2025, plaintiffs Steven Medak and Joyce Philbin filed their Complaint against Sigura Construction, Inc. arising from defective and incomplete rehabilitation work to their home at 2646 Marsh Drive, San Ramon, California (the “Property”), following a fire in February 2022. The Complaint asserts causes of action against Sigura for negligence, breach of contract, unfair business practices, and elder abuse based on Sigura's allegedly defective work. Plaintiffs allege that the Property remains uninhabitable.

After appearing in the case, Sigura asserted cross-claims for indemnity against several subcontractors: AM Hardwood Floors, Inc., Enriquez Plumbing, Essentra Heating and Air, Insul-Techs, Inc., J&P Home Builders, Inc., and Rodriguez Drywall. AM Hardwood Floors, Inc. and J&P Home Builders, Inc. were defaulted on September 9, 2025. Insul-Techs, Inc., Essentra Heating and Air, and Rodriguez Drywall have appeared. According to Sigura's case management conference statement, Sigura has been unable to locate or serve Enriquez Plumbing.

On February 20, 2026, Plaintiffs filed this motion for trial preference. Plaintiffs move for mandatory preference under Code of Civil Procedure (“CCP”) section 36(a) and discretionary preference under CCP section 36(e). Plaintiffs aver that Mr. Medak is over 70, that he is a co-owner of the Property and a contracting party with substantial interest in the action, and that all essential parties have been served or appeared. The motion is supported by a declaration of Mr. Medak stating that he has been